

BEFORE THE IOWA BOARD OF SOCIAL WORK

Re:	)	CASE NO. 14-0125
Social Worker Masters Level License of	)	
	)	SETTLEMENT AGREEMENT
LISA BAILEY	)	AND FINAL ORDER
License No. 06445	)	
Respondent.	)	

Pursuant to Iowa Code sections 17A.10 and 272C.3(4) (2013), the Iowa Board of Social Work ("Board") and Lisa Bailey ("Respondent") enter into the following Settlement Agreement and Final Order ("Order") to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

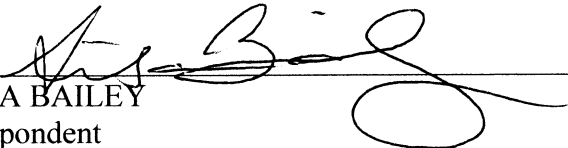
1. Respondent holds Iowa license number 06445 to practice social work at the masters level, which is currently active and expires on December 31, 2014.
2. The Board has jurisdiction over the parties and the subject matter of these proceedings.
3. The Board filed a Notice of Hearing and Statement of Charges against the Respondent on August 20, 2014. A contested case hearing in this matter is scheduled for November 10, 2014.
4. Respondent admits the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case proceeding, would constitute grounds for the discipline agreed to in this Settlement Agreement.
5. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's actions, by freely and voluntarily entering into this Settlement Agreement. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
6. Respondent is freely and voluntarily entering into this Order.
7. Respondent acknowledges that she has the right to be represented by counsel on this matter.
8. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

9. This Order is subject to approval by a majority of the full Board. If the Board fails to approve this Order, it shall be of no force or effect to either the Board or Respondent. If the Board approves this Order, it shall be the full and final resolution of this matter.
10. This Order shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
11. Respondent acknowledges and understands that this Order will be reported to the National Practitioner Data Bank.
12. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.
13. The Board's approval of this Order shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

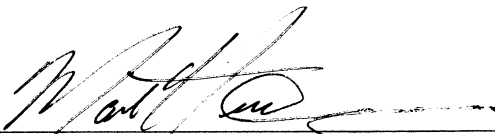
14. Respondent agrees to **VOLUNTARILY SURRENDER** her license to practice as a social worker to resolve this matter.
15. This voluntary surrender, when accepted by the Board, has the same force and effect as an order of revocation under 645 IAC 12.1(5).
16. Respondent shall surrender her social work license to the Board immediately upon the Board's approval of this Order.
17. Respondent agrees not to use any words or titles which imply or represent that she is a licensed social worker, or to otherwise hold herself out to the public as a licensed social worker, or to engage in the practice of social work for which a license is required in the State of Iowa.
18. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154C, and 272C and 645 IAC 13 and 283.
19. Respondent may not request reinstatement for at least three years from the date of this Order. Prior to seeking reinstatement, Respondent must undergo a comprehensive mental health, boundaries, and substance abuse evaluation with a Board-approved evaluator(s). Respondent shall seek approval from the Board of the evaluator(s) prior to undergoing the evaluation(s) and shall contact the Board to have the investigative file sent to the evaluator(s) prior to the evaluation(s). The evaluation(s) must address Respondent's ability to safely practice as a licensed social worker. Respondent may request reinstatement of her Iowa social work license after three years by filing an application for reinstatement under 645 IAC 11.31 and 280.15. Respondent's license shall not be reinstated except upon a showing by Respondent that the basis for revocation of her license no longer exists, and that it is in the public interest for the license to be reinstated.

This Settlement Agreement and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 29 day of August, 2014.



LISA BAILEY
Respondent

This Settlement Agreement and Final Order is accepted by the Iowa Board of Social Work on the 10th day of November, 2014.



MARK HUDSON, Chairperson
Iowa Board of Social Work

cc: Laura Steffensmeier
Assistant Attorney General
Hoover Building, 2nd Floor
Des Moines, IA 50319